IN THE COURT OF CIVIL JUDGE (SENIOR DIVISION), KUSHINAGAR AT PADRAUNA, UTTAR PRADESH

123/26

GULAM ANSARI VERSUS ABID ANSARI AND OTHERS

IN THE MATTER OF:

Gulam Ansari ... Applicant

VERSUS

Abid Ansari, Ishrafil Ansari, Sakil Ansari ... Respondent

Application for Attachment Before Judgment

Order XXXVIII Rule 5, Code of Civil Procedure, 1908

FACTUAL BACKGROUND

1. The plaintiff, Gulam Ansari, is a co-heir of the ancestral land bearing Survey No. 112/1 (sub-divided portion of Khasra No. 112) situated in Village Batrauli, Tehsil Padrauna, District Kushinagar.

2. The defendants, his brothers Abid, Ishrafil and Sakil Ansari, have taken possession of the plaintiff's undivided share in his absence.

3. On 05/11/2025 the defendants executed a sale deed in favour of Mr. Joseph Desouza, S/o Michael Desouza, for the transfer of the plaintiff's share without the plaintiff's consent.

4. A copy of the said sale deed is in the court record (SALE DEED.pdf).

5. The contemplated sale, if allowed, will defeat the plaintiff's rights and cause irreparable loss.

6. The plaintiff has filed an affidavit affirming the facts and the risk of dissipation (SupportingAffidavit_AttachmentBeforeJudgment.txt).

GROUNDS

1. The sale deed was executed without the plaintiff's consent and therefore constitutes an unlawful alienation of his share.

2. There is a real and imminent risk that the defendants will dispose of the plaintiff's share or the proceeds of the sale, thereby frustrating the decree that may be passed in the suit.

3. Under Order XXXVIII Rule 5 CPC, attachment before judgment may be ordered where there is a material risk of the defendant disposing of or removing the property to obstruct execution of a future decree.

4. The plaintiff has not abandoned his share; his absence was for employment and he intends to reside permanently at his native place.

DOCUMENTS RELIED ON

- SupportingAffidavit_AttachmentBeforeJudgment.txt
- SALE DEED.pdf
- Circle rate-market value proof for court fee.pdf

- Khatauni.pdf
- DEED OF PARTITION.pdf
- Khashra.jpg

SUPPORTING AFFIDAVIT

SupportingAffidavit_AttachmentBeforeJudgment.txt

PRAYER

Most respectfully prayed that this Hon'ble Court may be pleased to: (a) Issue an order of attachment under Order XXXVIII Rule 5 CPC directing that the sale deed dated 05/11/2025 and any proceeds thereof be attached and remain in the custody of the Court; (b) Direct the defendants and any third parties not to alienate, transfer, encumber or dispose of the plaintiff's share in the suit property pending final decree; (c) Direct the Registrar of the Court to issue a notice to the Registering Authority to prevent registration of the said sale deed until the suit is finally decided; (d) Pass such further or other order as this Hon'ble Court may deem fit and proper in the interest of justice.

Place: Kushinagar, Uttar Pradesh
Date: 2026-10-21

Applicant
Through Counsel
Parvez Akhtar
Enrollment No.: UP 85658/2020